



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2758: McMullen Valley; eligible entities; groundwater

KOLODIN FLOOR AMENDMENT

1. Requires rules adopted relating to the transportation of groundwater from the Harquahala INA apply to this act. (Sec. 2)
2. Adds a condition for the sale or lease of groundwater from historically irrigated acres by an eligible entity in La Paz County that receives groundwater from the McMullen Valley basin. (Sec. 2)

KOLODIN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2758

I move the following SUBSTITUTE amendment to the NATURAL RESOURCES, ENERGY & WATER
Committee Amendment to
HOUSE BILL 2758 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or
previously enacted session law.
[Green underlining in brackets] indicates text added to new session law
or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute
or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute,
previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Repeal

3 Section 45-552, Arizona Revised Statutes, is repealed.

4 Sec. 2. Title 45, chapter 2, article 8.1, Arizona Revised Statutes,
5 is amended by adding a new section 45-552, to read:

6 45-552. Transportation of groundwater withdrawn in McMullen
7 Valley basin to an active management area; annual
8 report; definition

9 A. AN ENTITY DESCRIBED IN SUBSECTION B OF THIS SECTION THAT OWNS
10 HISTORICALLY IRRIGATED ACRES IN THE MCMULLEN VALLEY GROUNDWATER BASIN MAY
11 WITHDRAW GROUNDWATER FROM THE LAND FOR TRANSPORTATION TO A LOCATION AND
12 FOR THE PURPOSES PRESCRIBED IN SUBSECTION D OF THIS SECTION:

13 1. IF THE GROUNDWATER IS WITHDRAWN:

14 (a) FROM A DEPTH TO ONE THOUSAND TWO HUNDRED FEET AT THE SITE OR
15 SITES OF THE PROPOSED WITHDRAWALS.

16 (b) AT A RATE THAT, WHEN ADDED TO THE EXISTING RATE OF WITHDRAWALS
17 IN THE AREA, DOES NOT CAUSE THE GROUNDWATER TABLE AT THE SITE OR SITES OF
18 THE WITHDRAWALS TO DECLINE MORE THAN AN AVERAGE OF TEN FEET PER YEAR
19 DURING THE ONE HUNDRED YEAR EVALUATION PERIOD.

20 2. IN AN AMOUNT EITHER:

21 (a) PER ACRE OF THE HISTORICALLY IRRIGATED ACRES, NOT TO EXCEED:

22 (i) SIX ACRE-FEET IN ANY YEAR.

23 (ii) THIRTY ACRE-FEET FOR ANY PERIOD OF TEN CONSECUTIVE YEARS
24 COMPUTED IN CONTINUING PROGRESSIVE SERIES BEGINNING IN THE YEAR
25 TRANSPORTATION OF GROUNDWATER FROM THE LAND BEGINS.

26 (b) ESTABLISHED BY THE DIRECTOR, BUT ONLY IF THE DIRECTOR
27 DETERMINES THAT WITHDRAWALS IN AN AMOUNT GREATER THAN THAT ALLOWED BY
28 SUBDIVISION (a) OF THIS PARAGRAPH WILL NOT UNREASONABLY INCREASE DAMAGE TO
29 RESIDENTS OF SURROUNDING LAND AND OTHER WATER USERS IN THE MCMULLEN VALLEY
30 GROUNDWATER BASIN, OR THAT ONE OR MORE OF THE ENTITIES WITHDRAWING THE

1 GROUNDWATER WILL MITIGATE THE DAMAGE TO THE RESIDENTS AND OTHER WATER
2 USERS.

3 3. BY A PUBLIC SERVICE CORPORATION, IF ALL COSTS ASSOCIATED WITH
4 WITHDRAWING, TRANSPORTING AND DELIVERING GROUNDWATER AWAY FROM THE
5 MCMULLEN VALLEY GROUNDWATER BASIN ARE COLLECTED FROM THE CUSTOMERS OF THE
6 PUBLIC SERVICE CORPORATION'S WATER DISTRICT WHERE THE TRANSPORTED
7 GROUNDWATER IS USED.

8 4. IF BEFORE THE WITHDRAWAL OF GROUNDWATER FROM THE MCMULLEN VALLEY
9 GROUNDWATER BASIN, THE ELIGIBLE ENTITY HAS DEMONSTRATED COMPLIANCE WITH
10 THE CRITERIA IN THIS SUBSECTION USING A HYDROLOGICAL STUDY. THE DIRECTOR
11 SHALL PRESCRIBE THE CONTENTS OF THE STUDY THAT IS SUBMITTED WITH THE
12 APPLICATION.

13 5. IF BEFORE THE WITHDRAWAL OF GROUNDWATER FROM THE MCMULLEN VALLEY
14 GROUNDWATER BASIN, THE ELIGIBLE ENTITY INSTALLS WATER MEASURING DEVICES,
15 OR OTHER SIMILARLY RELIABLE AND ACCESSIBLE METHODS AS APPROVED BY THE
16 DEPARTMENT, TO DETERMINE THE VOLUME OF GROUNDWATER THAT IS WITHDRAWN FROM
17 WELLS RELATED TO THE TRANSPORTATION ACTIVITY AND THAT IS TRANSPORTED OUT
18 OF THE MCMULLEN VALLEY GROUNDWATER BASIN BY PIPELINES, CANALS OR CONDUITS.

19 6. IF WITHIN THIRTY DAYS AFTER THE WITHDRAWAL OF GROUNDWATER FROM
20 THE MCMULLEN VALLEY GROUNDWATER BASIN FOR TRANSPORTATION, THE ELIGIBLE
21 ENTITY SUBMITS A MONTHLY REPORT TO THE DEPARTMENT CONTAINING ALL OF THE
22 FOLLOWING INFORMATION:

23 (a) THE VOLUME OF GROUNDWATER THE ENTITY WITHDREW FROM THE MCMULLEN
24 VALLEY GROUNDWATER BASIN IN THE PRECEDING MONTH.

25 (b) THE VOLUME OF GROUNDWATER THE ENTITY TRANSPORTED OUT OF THE
26 MCMULLEN VALLEY GROUNDWATER BASIN IN THE PRECEDING MONTH.

27 (c) THE END USE OR DESTINATION OF GROUNDWATER THE ENTITY
28 TRANSPORTED OUT OF THE MCMULLEN VALLEY GROUNDWATER BASIN IN THE PRECEDING
29 MONTH.

30 B. THE FOLLOWING ENTITIES ARE ELIGIBLE TO TRANSPORT GROUNDWATER
31 AWAY FROM THE MCMULLEN VALLEY GROUNDWATER BASIN PURSUANT TO SUBSECTION A
32 OF THIS SECTION:

33 1. THIS STATE.

34 2. A POLITICAL SUBDIVISION OF THIS STATE.

35 3. A PUBLIC SERVICE CORPORATION THAT IS REGULATED BY THE
36 CORPORATION COMMISSION AND THAT HOLDS A CERTIFICATE OF CONVENIENCE AND
37 NECESSITY FOR WATER SERVICE.

38 C. ~~[THE DIRECTOR SHALL ADOPT]~~ RULES ~~[TO IMPLEMENT]~~ [ADOPTED
39 PURSUANT TO SECTION 45-554 SHALL APPLY TO] THIS SECTION, INCLUDING FOR THE
40 REPORTING OF GROUNDWATER TRANSPORTED FROM THE MCMULLEN VALLEY GROUNDWATER
41 BASIN.

42 D. THE FOLLOWING LOCATIONS AND PURPOSES ARE ELIGIBLE TO RECEIVE
43 GROUNDWATER TRANSPORTED AWAY FROM THE MCMULLEN VALLEY GROUNDWATER BASIN
44 PURSUANT TO SUBSECTION A OF THIS SECTION:

45 1. AN INITIAL ACTIVE MANAGEMENT AREA FOR USE BY AN ELIGIBLE ENTITY
46 OR THE ARIZONA WATER BANKING AUTHORITY PURSUANT TO SECTION 45-2491.

1 2. LA PAZ COUNTY BY AN ELIGIBLE ENTITY IN A TOTAL CUMULATIVE VOLUME
2 NOT TO EXCEED TEN PERCENT OF THE TOTAL ANNUAL VOLUME OF GROUNDWATER THE
3 DEPARTMENT DETERMINES IS AVAILABLE FOR TRANSPORT OUT OF THE MCMULLEN
4 VALLEY GROUNDWATER BASIN. AN ELIGIBLE ENTITY IN LA PAZ COUNTY MAY DO
5 EITHER OF THE FOLLOWING:

6 (a) TRANSPORT GROUNDWATER FROM HISTORICALLY IRRIGATED ACRES IN THE
7 MCMULLEN VALLEY GROUNDWATER BASIN OWNED BY THE ELIGIBLE ENTITY TO A
8 LOCATION IN LA PAZ COUNTY FOR THE ELIGIBLE ENTITY'S OWN USE.

9 (b) SELL OR LEASE GROUNDWATER FROM HISTORICALLY IRRIGATED ACRES
10 OWNED BY THE ELIGIBLE ENTITY THAT ARE LOCATED IN LA PAZ COUNTY TO A
11 DESIGNATED PROVIDER IN THE PHOENIX, TUCSON OR PINAL ACTIVE MANAGEMENT AREA
12 FOR THE DESIGNATED PROVIDER'S OWN USE[. IF THE TOTAL CUMULATIVE VOLUME OF
13 GROUNDWATER SOLD OR LEASED PURSUANT TO THIS SUBDIVISION DOES NOT EXCEED
14 NINETY PERCENT OF THE TOTAL CUMULATIVE VOLUME OF GROUNDWATER AVAILABLE TO
15 LA PAZ COUNTY PURSUANT TO THIS PARAGRAPH].

16 E. ANY LOCAL USE OF GROUNDWATER BY AN ELIGIBLE ENTITY THAT SELLS OR
17 LEASES GROUNDWATER PURSUANT TO SUBSECTION D, PARAGRAPH 2 OF THIS SECTION
18 SHALL COUNT TOWARD THE ELIGIBLE ENTITY'S MAXIMUM PER ACRE WITHDRAWAL LIMIT
19 PRESCRIBED IN SUBSECTION A, PARAGRAPH 2, SUBDIVISION (a) OF THIS SECTION.

20 F. ON OR BEFORE JULY 1 OF EACH YEAR, THE DEPARTMENT SHALL SUBMIT A
21 REPORT TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE SPEAKER OF THE
22 HOUSE OF REPRESENTATIVES, AND SHALL PROVIDE A COPY OF THIS REPORT TO THE
23 SECRETARY OF STATE, OF THE TOTAL AMOUNT OF GROUNDWATER ALL ELIGIBLE
24 ENTITIES WITHDREW FROM THE MCMULLEN VALLEY GROUNDWATER BASIN IN THE
25 PRECEDING YEAR.

26 G. THIS SECTION DOES NOT PROHIBIT A PERSON FROM STORING AND
27 RECOVERING WATER THAT IS NOT GROUNDWATER AND THAT IS STORED PURSUANT TO
28 CHAPTER 3.1 OF THIS TITLE. WATER THAT IS NOT GROUNDWATER AND THAT IS
29 STORED PURSUANT TO CHAPTER 3.1 OF THIS TITLE DOES NOT COUNT TOWARD THE
30 WITHDRAWAL LIMITS PRESCRIBED IN SUBSECTION A, PARAGRAPH 2 OF THIS SECTION.

31 H. FOR THE PURPOSES OF THIS SECTION, "HISTORICALLY IRRIGATED ACRES"
32 MEANS LAND OVERLAYING AN AQUIFER THAT WAS IRRIGATED WITH GROUNDWATER FROM
33 THAT AQUIFER BEFORE JANUARY 1, 1988.

34 Enroll and engross to conform

35 Amend title to conform

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